

2:00 PM LINE 2

24-CIV-06967

CITY OF FOSTER CITY, ET AL VS. ELIZABETH KARNAZES, ET AL

**CITY OF FOSTER CITY
ELIZABETH KARNAZES**

**BENJAMIN L. STOCK
PRO SE**

Further Proceedings – Court’s Ruling to Defendant John Hartford’s Demurrer

TENTATIVE RULING:

Parties to appear. All parties may appear remotely.

2:00 PM LINE 3

25-CIV-04881

JUDITH NEHER-FOSTER VS. YOSEMITE CAPITAL LLC, A CALIFORNIA LIMITED LIABILITY
COMPANY, ET AL

JUDITH NEHER-FOSTER
YOSEMITE CAPITAL LLC, A CALIFORNIA LIMITED LIABILITY COMPANY

PRO SE
DANIEL S. CORNELL

Plaintiff's Motion to Consolidate, or in the Alternative, to Stay Unlawful Detainer Proceeding

TENTATIVE RULING:

For the reasons stated below, Plaintiff Judith Neher-Foster's Motion to Consolidate or, in the Alternative, to Stay Unlawful Detainer Proceeding is **GRANTED**.

As a preliminary matter, Defendants Yosemite Capital, LLC ("Yosemite"), Tom Malgesini, and California TD Specialists ("Trustee") failed to electronically bookmark the exhibits submitted in opposition, as required by California Rules of Court, rule 3.1110(f)(4). The parties are advised that future violations of the California Rules of Court may subject the offending party to sanctions. (Cal. Rules of Court, rule 2.30.)

Plaintiff Judith Neher-Foster ("Plaintiff") seeks to consolidate this action with the pending unlawful detainer proceeding filed against her by Yosemite, *Yosemite Capital, LLC v. Neher-Foster*, San Mateo County Superior Court case No. 25UDL01769. In the alternative, Plaintiff requests that the unlawful detainer proceeding be stayed pending resolution of this civil action.

Code of Civil Procedure section 1048, subdivision (a), provides that when actions involving a common question of law or fact are pending before the court, the court may order the actions consolidated and may make such orders concerning the proceedings as may tend to avoid unnecessary costs or delay. (Code Civ. Proc., § 1048, subd. (a).) Consolidation is intended to promote efficiency and avoid unnecessary duplication in the proof and determination of issues common to multiple actions. (*McClure v. Donovan* (1949) 33 Cal.2d 717, 721–722.)

Here, the two actions concern the same real property and substantially overlapping issues concerning Yosemite's asserted title and right to possession following the May 14, 2025 foreclosure sale. Plaintiff alleges in this action, among other things, that the underlying loan transaction and deed of trust were procured through fraud or otherwise invalid, that the foreclosure sale was improperly conducted, and that Yosemite obtained title as a result of that foreclosure. Plaintiff seeks, among other relief, to set aside or otherwise invalidate instruments affecting title to the property. Yosemite's unlawful detainer action, in turn, seeks possession based upon the title acquired through the foreclosure sale. Accordingly, the validity and effect of the foreclosure and the parties' competing rights to title and possession substantially overlap in the two proceedings.

A post-foreclosure unlawful detainer action under Code of Civil Procedure section 1161a differs from an ordinary unlawful detainer proceeding because it permits a limited inquiry into title. Under section 1161a, subdivision (b)(3), the purchaser must establish that the property was sold in accordance with Civil Code section 2924 and that title under the sale was duly perfected. The resulting inquiry into title, however,